



Notification Waiver Determination

AngloGold Ashanti Australia – Matsa Lake Carey tenements

Acquisition	AngloGold Ashanti Australia Limited (AGA Australia) applied for a notification waiver in respect of its proposed acquisition of certain tenements related to Matsa Resources Limited's (Matsa Resources) Lake Carey Gold Project, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	30 July 2026

Parties to the Acquisition	The acquirer, AGA Australia, is a gold mining company operating in Australia. It owns the Sunrise Dam gold mine and has a 70% interest in (and manages) the Tropicana gold mine, both of which are located in Western Australia. AGA Australia is a subsidiary of AngloGold Ashanti plc (AGA). AGA is a global gold mining company with a diverse portfolio of operations, projects, and exploration activities across 10 countries. AGA is incorporated in England and Wales, headquartered in Denver, Colorado (USA), and has a primary listing on the New York Stock Exchange and secondary listings on the Johannesburg and Ghana Stock Exchanges. AGA Australia proposes to exercise the option in a tenements option agreement (Option Agreement) entered into in February 2025 with Matsa Gold Pty Ltd (Matsa Gold) and Red October Gold Pty Ltd (Red October Gold) in relation to certain tenements at Matsa Resources' Lake Carey Gold Project. AGA Australia has since withdrawn several tenements from the Option Agreement that relate to Matsa Gold and Red October Gold's existing operations at the Lake Carey Gold Project. The five tenements that remain subject to the Option Agreement (the Tenements) do not relate to any existing gold mine. The purpose of AGA Australia exercising the option is to allow it to carry out exploration for gold in the area subject to the Tenements. Matsa Gold and Red October Gold are wholly owned subsidiaries of Matsa Resources, an ASX-listed gold mining company with operations in Western Australia and Thailand.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act).

	Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. the increment in share of the actual and expected production and supply of gold in Australia and globally arising from the Acquisition is expected to be small b. there are alternative producers and suppliers of gold in Australia and globally. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act